

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MATTHEW POLANCO,

Plaintiff,

-against-

**THE CITY OF NEW YORK, PO JORGE LOPEZ,
Tax ID No. 958830, PO ELIAS NIAZI,
Tax ID No. 963180, and POLICE OFFICERS
“JOHN DOE” #1-10, Individually and in
Their Official Capacity (the name John
Doe being fictitious, as the true names
Are presently unknown),**

Defendants.
-----X

Index No.:
Date Summons Filed:

SUMMONS

Plaintiff Designates
Bronx County

As the place of trial
The basis of venue
County of Incident

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff’s Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 2, 2024

By: /S Ken Belkin
Kenneth E. Belkin, Esq.
Attorney for Plaintiff
225 Broadway, Suite 715
New York, NY 10007
c: (718) 724-3466
f: (212) 566-8165
e: kb@belkinlaw.com

TO: THE CITY OF NEW YORK, Corporation Counsel,
100 Church Street, New York, New York 10007

PO JORGE LOPEZ, Tax ID No. **958830**, NYPD
Transit Bureau
District 11; 161st Street Station and River Avenue,
Bronx, NY 10451

PO, Tax ID No. **963180**, NYPD Transit Bureau
District 11; 161st Street Station and River Avenue,
Bronx, NY 10451

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Doe being fictitious, as the true names
Are presently unknown),**

Defendants.

-----X

Plaintiff MATTHEW POLANCO, by his attorney, KENNETH E. BELKIN, ESQ.,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and laws of the State of New York.

2. On May 9, 2023, at approximately 11:20 p.m., Plaintiff Matthew Polanco, while lawfully at or around the 161st Street 4 Train Station, County of Bronx, New York, was subject to an unlawful detention and arrest by the defendant police officers. Further, Plaintiff was subjected to excessive force, assault, and battery when defendant officers attacked and

tackled him to the ground, resulting in a broken ankle among other physical injuries.

3. In addition, Plaintiff was subjected to approximately eighteen (18) hours of unlawful confinement at the NYPD 52nd Precinct and Bronx County Central Bookings. The plaintiff was thereafter arraigned in Bronx County Criminal Court and released on his own recognizance. The charges against Plaintiff were dismissed and sealed on December 15, 2023..

4. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

5. Plaintiff Matthew Polanco is a resident of the state of New York

6. New York City Police Officer Jorge Lopez, Shield No. 19520, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. New York City Police Officer Jorge Lopez, Shield No. 19520, is being sued in his individual and official capacity.

8. Upon information and belief, New York City Police Officer Jorge Lopez, Shield No. 19520, was at all times relevant herein assigned to the NYPD Transit Bureau District 11 Anti-Terrorism Unit.

9. New York City Police Officer Elias Niazi, Shield No. 21042, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. New York City Police Officer Elias Niazi, Shield No. 21042, is being sued in his individual and official capacity.

11. Upon information and belief, New York City Police Officer Elias Niazi, Shield No. 20142, was at all times relevant herein assigned to the NYPD Transit Bureau District 11 Anti-Terrorism Unit.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On May 9, 2023, at approximately 11:20 p.m., Plaintiff was lawfully present in the vicinity of the 161st Street 4 Train Station, County of Bronx, New York, when the defendant officers unlawfully descended upon, stopped, detained, searched, and arrested Plaintiff without probable cause or legal justification.

21. At the aforementioned place and time, Plaintiff had just entered the train station with some friends when defendant officers approached him.

22. Defendant officers grabbed plaintiff and tackled him to the ground, physically assaulting him and causing a broken ankle, among other injuries.

23. It was at this point that defendant officers began to arrest the plaintiff, restraining him with tight metal handcuffs and subjecting him to unlawful pat-down search.

24. At no time relevant herein did Plaintiff commit a crime or violate the law in

any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

25. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

26. Plaintiff did not resist arrest.

27. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subjected to unlawful pat-down search by the defendant officers without legal justification or probable cause.

28. Thereafter, Plaintiff was transported to Montefiore Hospital for professional medical treatment, which included X-rays on his ankle.

29. After treatment at the hospital, Plaintiff was transported to the NYPD 52nd Precinct, where he was unlawfully searched, fingerprinted, photographed, and placed in a holding cell.

30. Thereafter, Plaintiff was transported to Central Booking, where he was again processed and detained in a holding cell.

31. While Plaintiff was in custody, the defendant police officers provided the Bronx County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff had committed a crime; specifically, that he was engaged in Assault on an Officer, Resisting Arrest, and other related charges.

32. The following evening, on or about May 10, 2023, after approximately eighteen (18) hours in unlawful custody, Plaintiff was arraigned in criminal court and charged with crimes he did not commit.

33. Plaintiff was represented in these proceedings by a public defender, as he could not afford his own private legal representation.

34. Plaintiff entered a not guilty plea at his arraignment and was released on his own recognizance.

35. Since the incident, the plaintiff has received two (2) surgeries on his ankle, and expects to incur further expenses for medical treatments, surgeries, and physical therapy.

36. The false charges made against the plaintiff by defendant officers are still pending at this time.

37. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

38. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain mental and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

40. Defendants owed a duty of care to Plaintiff.

41. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things,

tackling him to the ground.

42. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

43. All of the foregoing occurred without any fault or provocation by Plaintiff.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

47. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

48. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

49. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

50. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police

Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

53. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

54. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

55. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION
False Arrest/False Imprisonment

56. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise

privileged.

58. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

63. The use of excessive force by defendants by, amongst other things, tackling him to the ground, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

66. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

67. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

68. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length

herein.

73. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Failure to Intervene

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

76. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

77. Defendants failed to intervene to prevent the unlawful conduct described herein.

78. As a result of the foregoing, Plaintiff suffered permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

79. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the

scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process

83. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

84. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

85. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

86. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

87. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

88. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Assault

92. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

93. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

94. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police

Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Battery

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

99. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tackled him to the ground, brutally effecting an arrest without his consent and with the intention of causing harmful and/offensive bodily contact to the Plaintiff and caused such battery.

100. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION**Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

104. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

105. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

106. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

107. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately eighteen (18) hours in total.

108. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION**Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

109. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

110. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

111. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure

in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

112. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

113. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

114. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

115. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

116. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

117. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

118. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

119. The acts of defendant officers caused Plaintiff to be deprived of his rights under

2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

120. The defendant officers, while in uniform, unlawfully seized, frisked, and searched Plaintiff, before detaining and further causing his detention for approximately eighteen (18) hours in total.

121. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

122. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

123. Defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

124. The City of New York, as the employer of the covered individual defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers.

125. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

126. The defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in

connection with a search or seizure.

127. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

128. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

129. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION
Violation of Article I, § 12 of the New York State
Constitution

130. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

131. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of

the individual defendants; and

v. freedom from deprivation of liberty without due process of law.

132. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

133. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
August 2, 2024

/s/ Ken Belkin
Kenneth E. Belkin, Esq.
Attorney for Plaintiff
225 Broadway, Suite 715
New York, N.Y. 10007
c: (718)724-3466
f: (212)566-8165
e: kb@belkinlaw.com

ATTORNEY'S VERIFICATION

I, **KENNETH E. BELKIN**, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of KENNETH E. BELKIN, ESQ., the attorney for plaintiff MATTHEW POLANCO in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes them to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not currently residing within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York

August 2, 2024

/s Ken Belkin
Kenneth E. Belkin, Esq.

Index No.:
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Are presently unknown),**

Defendants.

SUMMONS AND COMPLAINT

Kenneth E. Belkin, Esq.
Attorney for Plaintiff
225 Broadway, Suite 715
New York, New York 10007
c: (718) 724-3466
f: (212) 566-8165
e: kb@belkinlaw.com

ATTORNEY CERTIFICATION

I, KENNETH E. BELKIN, ESQ., hereby certify that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the papers or the contentions therein are not frivolous as defined in subsection (c) of section 130-1.1.

Dated: New York, New York
August 2, 2024

/s/ Ken Belkin

Kenneth E. Belkin, Esq.